

Form No:HCJD/C-121
ORDER SHEET

IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Case No: W.P No.25717/2013

University of Agriculture Faisalabad Versus Provincial Ombudsman Punjab etc

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties of counsel, where necessary.
-------------------------------	------------------------------	--

23.01.2015 Mr. Muhammad Shahzad Shaukat, Advocate
for the petitioner-University.
Ms Samia Khalid, A.A.G.
Mr. Sadaqat Mehmood Butt, Advocate for
respondent No.2

The facts in this case are simple and easily
resolved. This petition lays a challenge to the
order passed by the Provincial Ombudsman,
Punjab (**Ombudsman**) dated 12.09.2013. There
are two jurisdictional issues raised in this petition
and they can be encapsulated as follows:

- i. *The petitioner herein viz the University of
Agriculture, Faisalabad is not an Agency
within the meaning and term of Agency as
defined in section 2(1) of the Punjab Office
of the Ombudsman Act, 1997 (**Act of 1997**)
and thus, the Ombudsman under the Act of
1997 does not have the jurisdiction in
respect of the petitioner-University.*
- ii. *Notwithstanding the above in terms of
section 9(7) of the Act of 1997, the
Ombudsman does not have the jurisdiction
on any complaint by or on behalf of a
public servant or functionary concerning
another matter relating to the Agency in
which he has been working in respect of*

any personal grievance relating to his service therein.

2. There is an ancillary issue raised apart from the above legal submissions and which related to section 3(5) of the University of Veterinary and Animal Sciences Ordinance, 2002 (**Ordinance**) relying upon which, it is submitted by the learned counsel for the petitioner that the liability if at all with regard to the pensionary benefits of the respondent No.2 lies with the University of Veterinary and Animal Sciences as set up by the Ordinance and in this respect the mandate of section 3 (5) of the Ordinance is unequivocal and beyond doubt.

3. As a precursor, to the determination on the legal issues raised by the learned counsel for the petitioner, a narration of some relevant facts would be in order. The respondent No.2 retired as an Assistant Professor from the University of Veterinary and Animal Sciences, Lahore on 07.10.2001. On 08.06.2002, the College of Veterinary Sciences was upgraded to the status of a University by virtue of Ordinance. On 06.08.2013, the respondent No.2 filed a complaint with regard to his pension in which reply was filed by the petitioner and certain jurisdictional issues were raised. The Ombudsman, however, vide his order dated

12.09.2013 directed the payment of pensionary benefits to respondent No.2 and placed the burden on the petitioner to make the payment. In the impugned order, the Ombudsman has not adverted to the legal objections taken with regard to his authority to enter upon the controversy and to decide upon it.

4. The respondent No.2 has merely submitted that he would be interested in the resolution of his matter relating to the pensionary benefits and he was constrained to approach the Ombudsman because he had no other remedy or recourse and has been denied his pensionary benefits since the years of his retirement. He did not seriously contest the propositions of law raised by the learned counsel for the petitioner.

5. For the resolution of the controversy in hand it would be advantageous to reproduce the relevant provisions relied upon by the learned counsel for the petitioner viz section 2 and 9 of the Act of 1997, as under:

*“2. **Definitions.**—In this Act unless there is anything repugnant in the subject or context—*

(1) “Agency” means a department, commission or office of the provincial Government or a statutory corporation or other institution established or controlled by the Provincial Government but does not include the High Court and Courts working under the supervision and control of the High Court, and the Provincial Assembly of the Punjab and its Secretariat.”

*9. **Jurisdiction, functions and powers of the Ombudsman.**—(1) The*

Ombudsman may on a complaint by any aggrieved person, on a reference by the Government or the Provincial Assembly or on a motion of the Supreme Court or the High Court made during the course of any proceedings before it or of his own motion, undertake any investigation into any allegation of maladministration on the part of any Agency or any of its officers or employees:

Provided

(a).....

(b).....

(C).....

(2) Notwithstanding anything contained in subsection (1), the Ombudsman shall not entertain for investigation any complaint by or on behalf of a public servant or functionary concerning any matters relating to the Agency in which he is, or has been, working, in respect of any personal grievance relating to his service therein.”

6. The question whether the petitioner/University falls within the definition of term Agency is a threshold question and also a vexed one and it would not be necessary to go into that question in the instant petition as the issues raised in this petition can be decided with reference to section 9 (2) of the Act of 1997. A reading of the said section brings forth that all matters relating to the Agency in which the public servant or functionary has been working in respect of any personal grievance relating to his service therein are barred from the jurisdiction of the Ombudsman. There is , thus, a clear ouster of the Ombudsman’s jurisdiction with regard to the matters relating to service of a public servant. The intention of the legislature has been clearly spelt out in section 9 (2) of the Act of 1997 and

when the intention is clear, it is an obligation upon the courts and all public bodies functioning under that Act to give an effect to the intention of the legislature. Apart from the above, there is a clear purpose to oust the jurisdiction of Ombudsman in matters relating to service of a public servant since these matters have been consigned to the province of specialized forums set up by service laws and which are required and mandated by law to deal with the issues of terms and conditions of service of public and civil servants. The *non obstante clause* introduced in the Act of 1997 was clearly aimed at avoiding a conflict between two forums on the same issue. When the legislature has provided special forums and invested it with power to adjudicate upon service matters, it was imperative that the jurisdiction legislature made provisions in other laws as well in order to maintain jurisdiction of the forums set up to adjudicate service matters. The Ombudsman by the impugned order has clearly gone beyond the periphery of the powers vested in him by the Act of 1997.

7. The impugned order not only runs counter to the clear provisions of law but also to at least three judgments of this Court which have held the jurisdiction of the Ombudsman to be barred in such matters. In Muhammad Aslam Zia v.

Administrator, Punjab Agricultural Development
and Supplies Corporation (Defunct), 4-Lytton
Road Lahore and 4 others (2002 PLC (C.S)

606) it was held by this Court as under:

“...As I have already held in my judgment dated 31-10-2001 passed in Writ Petition No.10376 of 2001 that the Provincial Ombudsman has no jurisdiction to entertain the matters relating to the terms and conditions of service and the impugned orders passed by him has already been set aside, the order passed by the Provincial Ombudsman on the face of it is without jurisdiction and the Provincial Ombudsman has failed to show whether he had the jurisdiction to entertain the complaint filed by the petitioner and has passed an order which is without jurisdiction. Thus, the order of the Provincial Ombudsman is void and without jurisdiction...”

Similarly, in Tariq Jamil Rana v. Provincial Ombudsman (Mohtasib), Punjab 2-Bank Road, Lahore and others (**2002 PLC (C.S) 779**), the following observations are pertinent:

“4. Whether it is a recommendation or a direction is not material. What is material is the question whether respondent No.1 has the jurisdiction to pass the recommendation/direction or not. The relevant facts noted above clearly indicate that respondent No.2, a public servant, was agitating a question in respect of his right to be promoted or to be considered for promotion by the Agency. Such a question has clearly been, excluded not only from examination but even from entertainment by respondent No.1.”

8. Following of his earlier judgment, Mr. Justice Ijaz Ahmad Chaudhry, J. relied his earlier judgment referred to above and in Punjab Agricultural Development and Supplies Corporation through Administrator v.

Muhammad Rafiq Khan and 2 others (**2002 PLC (C.S) 1133**), held as under:

“...I am in agreement with the learned counsel for the petitioner that under subsection (2) of section 9 of the Punjab Office of the Ombudsman Act, 1997, the Provincial Ombudsman cannot interfere in the service matters of the employees including the employees of the statutory Corporation and as the petitioner was statutory Corporation and the payment of gratuity relates to the terms and conditions of the service of the employees, the interference by the Provincial Ombudsman is without jurisdiction and without lawful authority...”

9. Before parting with this judgment, it is noted that this Court is cognizant and sensitive to the fact that the respondent No.2's only concern is the reimbursement to him of his pensionary benefits. He filed a complaint to the Ombudsman in good faith and in a desperate attempt to seek redressal. The decision in the instant petition, on a jurisdictional issue, shall further exacerbate his suffering and adjudication of his matter.

10. It is, therefore, directed that the Vice Chancellor, University of Veterinary and Animal Sciences Lahore shall enquire and decide upon the grievance urged by the respondent No.2 himself or through a delegate duly appointed within a period of one month from the receipt of the order of this Court. The matter shall be dealt with holistically and with the aim to decide it finally in such a manner that the respondent No.2 is not made to run from pillar to post. For the

purpose, the Vice Chancellor or the delegee shall hear the respondent No.2, requisition all record and decide by a speaking order. This matter seems to be one where the obligation of payment of pensionary benefits of the respondent No.2 is to be fixed on either of the two viz. the petitioner University or the University of Veterinary and Animal Sciences, Lahore. The Vice Chancellor to whom the matter is remitted shall coordinate and liaise with the officials of the petitioner University, if need be, if so required for the resolution of the controversy. The office shall transmit this order to the Vice Chancellor for compliance.

For what has been stated above and in view of the precedents of this Court cited in support there of, this petition is **accepted** and the impugned order of the Ombudsman dated 12.09.2013 is **set aside**.

(SHAHID KARIM)
JUDGE

Announced in open Court on 30.01.2015.

JUDGE

Approved for reporting.

JUDGE

★

Rafiqat Ali